Biogen MA Inc. et al v. Somerset Therapeutics, LLC et al

Plaintiff:	Biogen MA Inc., Biogen Inc., Cold Spring Harbor Laboratory and Ionis Pharmaceuticals, Inc.
Defendant:	Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Limited,, Odin Pharmaceuticals, LLC, Cipla Ltd. and Cipla USA, Inc.
Counter-Claimant:	Odin Pharmaceuticals, LLC, Somerset Therapeutics, LLC, Somerset Therapeutics Private Limited and Somerset Pharma, LLC
Counter-Defendant:	Biogen Inc., Biogen MA Inc., Cold Spring Harbor Laboratory and Ionis Pharmaceuticals, Inc.
Case Number:	1:2026cv00580
Filed:	May 20, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Colm F Connolly
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
July 15, 2026	**Filing 23** ANSWER to #1 Complaint, , COUNTERCLAIM against Biogen Inc., Biogen MA Inc., Cold Spring Harbor Laboratory, Ionis Pharmaceuticals, Inc. by Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC, Odin Pharmaceuticals, LLC, Somerset Pharma, LLC.(Gattuso, Dominick)
July 8, 2026	**Filing 22** ANSWER to #12 Answer to Complaint, Counterclaim - by Biogen Inc., Biogen MA Inc..(Fahnestock, Derek)
July 7, 2026	**Filing 21** Pro Hac Vice Fee - Credit Card Payment received for Lance A. Soderstrom. (re #19 MOTION for Pro Hac Vice Appearance of Attorney Matthew M. Holub, Attorney Joseph M. Janusz, Attorney Jitendra "Jitty" Malik, Attorney Deepro R. Mukerjee, Attorney Sara M. Pistilli, and Attorney Lance A. Soderstrom)(Payment of $ 50, receipt number ADEDC-5009604).(Dorsney, Kenneth)
July	**Filing 20** Pro Hac Vice Fee - Credit Card Payment received for Matthew M. Holub,

Date Filed	Document Text
7, 2026	Joseph M. Janusz, Jitendra "Jitty" Malik, Deepro R. Mukerjee, and Sara M. Pistilli. (re #19 MOTION for Pro Hac Vice Appearance of Attorney Matthew M. Holub, Attorney Joseph M. Janusz, Attorney Jitendra "Jitty" Malik, Attorney Deepro R. Mukerjee, Attorney Sara M. Pistilli, and Attorney Lance A. Soderstrom)(Payment of $ 250, receipt number ADEDC-5009596).(Dorsney, Kenneth)
July 7, 2026	**Filing 19** MOTION for Pro Hac Vice Appearance of Attorney Matthew M. Holub, Attorney Joseph M. Janusz, Attorney Jitendra "Jitty" Malik, Attorney Deepro R. Mukerjee, Attorney Sara M. Pistilli, and Attorney Lance A. Soderstrom - filed by Cipla Ltd., Cipla USA, Inc.. (Dorsney, Kenneth)
July 7, 2026	SO ORDERED, re #19 MOTION for Pro Hac Vice Appearance of Attorney Matthew M. Holub, Attorney Joseph M. Janusz, Attorney Jitendra "Jitty" Malik, Attorney Deepro R. Mukerjee, Attorney Sara M. Pistilli, and Attorney Lance A. Soderstrom filed by Cipla Ltd., Cipla USA, Inc. Ordered by Judge Colm F. Connolly on 7/7/2026. (mws)
July 2, 2026	**Filing 18** SO ORDERED, re (16 in 1:26-cv-00580-CFC, 14 in 1:26-cv-00735-CFC, and 10 in 1:26-cv-00736-CFC) STIPULATION Regarding Consolidation and Scheduling Conference filed by Biogen MA Inc., Biogen Inc. The Somerset I, Somerset II, and Cipla Actions are consolidated for all purposes. All filings shall be made in the lead case, C.A. No. 26-580-CFC. The July 9, 2026 Telephonic Scheduling Conference is RESCHEDULED to August 6, 2026 at 2:00 p.m. See Order for further details. Signed by Judge Colm F. Connolly on 7/2/2026. Associated Cases: 1:26-cv-00580-CFC, 1:26-cv-00735-CFC, 1:26-cv-00736-CFC(mws)
July 2, 2026	Set Hearings per D.I. #18 : A Telephonic Scheduling Conference is set for 8/6/2026 at 02:00 PM before Judge Colm F. Connolly. (mws)
July 1, 2026	**Filing 17** Letter to The Honorable Colm F. Connolly from Karen Jacobs - re (16 in 1:26-cv-00580-CFC, 10 in 1:26-cv-00736-CFC, 14 in 1:26-cv-00735-CFC) STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference . (Jacobs, Karen)
July 1, 2026	**Filing 16** STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference - filed by Biogen Inc., Biogen MA Inc.. (Jacobs, Karen)
June 18, 2026	**Filing 15** Order Setting Telephonic Scheduling Conference: A Telephonic Scheduling Conference is set for 7/9/2026 at 01:30 PM before Judge Colm F. Connolly. If the parties have no disputes about the scheduling order, the Court will not require the parties to appear at a conference. Signed by Judge Colm F. Connolly on 6/18/2026.

Date Filed	Document Text
	(mws)
June 18, 2026	**Filing 14** NOTICE OF SERVICE of Defendants Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited, and Odin Pharmaceuticals, LLC's ANDA production filed by Odin Pharmaceuticals, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC.(Gattuso, Dominick)
June 17, 2026	**Filing 13** Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Somerset Lifesciences, Inc. for Odin Pharmaceuticals, LLC, Odin Pharmaceuticals, LLC, Somerset Pharma, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited, Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC, Somerset Therapeutics, LLC filed by Odin Pharmaceuticals, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC. (Gattuso, Dominick)
June 17, 2026	**Filing 12** ANSWER to #1 Complaint, , COUNTERCLAIM against Biogen Inc., Biogen MA Inc. by Odin Pharmaceuticals, LLC, Somerset Therapeutics, LLC, Somerset Therapeutics Private Limited, Somerset Pharma, LLC.(Gattuso, Dominick)
May 29, 2026	**Filing 11** SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc..Odin Pharmaceuticals, LLC served on 5/27/2026, answer due 6/17/2026. (Tigan, Jeremy)
May 29, 2026	**Filing 10** SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc..Somerset Therapeutics Private Limited served on 5/27/2026, answer due 6/17/2026. (Tigan, Jeremy)
May 29, 2026	**Filing 9** SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc..Somerset Pharma, LLC served on 5/27/2026, answer due 6/17/2026. (Tigan, Jeremy)
May 29, 2026	**Filing 8** SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc..Somerset Therapeutics, LLC served on 5/27/2026, answer due 6/17/2026. (Tigan, Jeremy)
May 27, 2026	**Filing 7** JUDGE COLM F. CONNOLLY STANDING ORDERS. Parties shall comply with all applicable standing orders and consult the Court's website for updates. (mws)
May 27, 2026	Case Assigned to Judge Colm F. Connolly. Please include the initials of the Judge (CFC) after the case number on all documents filed. (alb)
May 21,	**Filing 6** Summons Issued as to Odin Pharmaceuticals, LLC on 5/21/2026; Somerset Pharma, LLC on 5/21/2026; Somerset Therapeutics Private Limited on 5/21/2026;

Date Filed	Document Text
2026	Somerset Therapeutics, LLC on 5/21/2026. (Attachments: #1 Summons Issued, #2 Summons Issued, #3 Summons Issued)(mrr) .
May 20, 2026	**Filing 5** Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Biogen Inc. for Biogen MA Inc. filed by Biogen Inc., Biogen MA Inc. (mrr)
May 20, 2026	**Filing 4** Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 9,926,559, B2; 10,436,802 B2; 12,013,403 B2. (mrr)
May 20, 2026	**Filing 3** Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 04/10/2026. Date of Expiration of Patent: U.S. Patent No. 9,926,559 expires on January 9, 2034, U.S. Patent No. 10,436,802 expires on September 11, 2035, and U.S. Patent No. 12,013,403 expires on March 4, 2036.Thirty Month Stay Deadline: 10/10/2028. (mrr)
May 20, 2026	**Filing 2** Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (mrr)
May 20, 2026	**Filing 1** COMPLAINT against Odin Pharmaceuticals, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC (Filing fee $ 405, receipt number ADEDC-4974153) - filed by Biogen MA Inc., Biogen Inc. (Attachments: #1 Exhibits A-C, #2 Civil Cover Sheet)(mrr)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Biogen MA Inc. (Massachusetts) and Biogen Inc. (Delaware)
  - Defendant: Somerset Therapeutics, LLC (Delaware), Somerset Pharma, LLC (Delaware), Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited (India), and Odin Pharmaceuticals, LLC (Delaware)
  - Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
- Case Identification: 1:26-cv-00580, D. Del., 05/20/2026
- Venue Allegations: Venue is alleged to be proper in the District of Delaware because three of the defendant entities are incorporated in Delaware and maintain registered agents there, thus residing in the district.
- Core Dispute: Plaintiff alleges that Defendants' submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of the spinal muscular atrophy treatment Spinraza® constitutes an act of infringement of three U.S. patents covering the drug's composition and methods of use.
- Technical Context: The technology involves an antisense oligonucleotide therapeutic designed to treat spinal muscular atrophy (SMA), a progressive and often fatal neurodegenerative genetic disease, by modulating mRNA splicing.
- Key Procedural History: This action was triggered by a Paragraph IV certification included in Defendants' ANDA No. 221418, in which Defendants assert that the patents-in-suit are invalid, unenforceable, or will not be infringed by their proposed generic product. The complaint notes that the Somerset defendants have regularly engaged in prior patent litigation in the District of Delaware.

Case Timeline

Date	Event
2013-01-09	U.S. Patent No. 9,926,559 Priority Date
2014-09-12	U.S. Patent Nos. 10,436,802 and 12,013,403 Priority Date
2018-03-27	U.S. Patent No. 9,926,559 Issued
2019-10-08	U.S. Patent No. 10,436,802 Issued
2024-06-18	U.S. Patent No. 12,013,403 Issued

2026-04-09	Date of Somerset's Notice Letter
2026-04-10	Biogen receives Somerset's Notice Letter
2026-05-20	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,926,559 - "Compositions and methods for modulation of SMN2 splicing in a subject"

- Patent Identification: U.S. Patent No. 9,926,559, *"Compositions and methods for modulation of SMN2 splicing in a subject,"* issued March 27, 2018 Compl. ¶25

The Invention Explained

- Problem Addressed: The patent addresses spinal muscular atrophy (SMA), a genetic disorder caused by the loss of the SMN1 gene. A nearly identical gene, SMN2, exists but primarily produces a non-functional protein because of a splicing event that excludes a critical segment, exon 7 '802 Patent, col. 1:49-col. 2:38
- The Patented Solution: The invention is a synthetic, chemically modified nucleic acid strand known as an antisense oligonucleotide (ASO). This ASO is designed to bind to a specific location on the pre-mRNA transcribed from the SMN2 gene, which redirects the cellular splicing machinery to include exon 7, thereby producing the full-length, functional SMN protein that is otherwise deficient in SMA patients '802 Patent, col. 28:50-col. 29:19
- Technical Importance: This technology provided a method to leverage the body's existing but underutilized SMN2 gene to produce a functional protein, offering a way to treat the underlying genetic cause of SMA rather than just its symptoms '802 Patent, col. 34:26-35

Key Claims at a Glance

- The complaint asserts at least independent claim 1 Compl. ¶41
- The essential elements of Claim 1 are:
    - A method of treating a human subject with SMA.
    - The method comprises administering an antisense oligonucleotide (ASO) of 18 linked nucleosides with the sequence SEQ ID NO: 1.
    - The ASO has specific chemical modifications: each internucleoside linkage is a phosphorothioate, each nucleoside is a 2'-MOE nucleoside, and each cytosine is a 5-methyl cytosine.

- The ASO is administered into the cerebrospinal fluid by bolus injection into the intrathecal space.
- The administered dose is one of a select list of specific amounts: 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams Compl. ¶41

U.S. Patent No. 10,436,802 - "Methods for treating Spinal Muscular Atrophy"

- Patent Identification: U.S. Patent No. 10,436,802, *"Methods for treating Spinal Muscular Atrophy,"* issued October 8, 2019 Compl. ¶28

The Invention Explained

- Problem Addressed: The patent addresses the need for an effective clinical protocol for administering an SMA therapeutic. Simply having a drug is insufficient; determining the correct dose, timing, and administration route is critical for safety and efficacy, particularly for a neurodegenerative disease '802 Patent, col. 19:56-col. 20:10
- The Patented Solution: The patent claims a specific method of treatment using a series of "loading doses" of the nusinersen ASO. This regimen involves administering an initial dose, followed by two subsequent doses at specific time intervals (e.g., approximately two and four weeks later) to rapidly achieve a therapeutic concentration of the drug in the central nervous system '802 Patent, col. 49:42-50
- Technical Importance: Establishing an effective loading dose regimen is a key step in developing a chronic therapy, as it allows for quickly achieving therapeutic drug levels that can then be maintained with subsequent, less frequent dosing.

Key Claims at a Glance

- The complaint asserts at least independent claim 1 Compl. ¶55
- The essential elements of Claim 1 are:
  - A method for treating a human subject with SMA symptoms.
  - The method comprises administering by intrathecal injection doses of the same ASO described in the '559 Patent (18-mer, SEQ ID NO: 1, with phosphorothioate, 2'-MOE, and 5-methyl cytosine modifications).
  - The doses comprise a specific loading regimen: (i) a first dose of 12 mg; (ii) a second dose of 12 mg administered 12-18 days after the first dose; and (iii) a third dose of 12 mg administered 25-35 days after the first dose Compl. ¶55

U.S. Patent No. 12,013,403 - "Compositions and methods for detection of SMN protein in a subject and treatment of a subject"

- Patent Identification: U.S. Patent No. 12,013,403, *"Compositions and methods for detection of SMN protein in a subject and treatment of a subject,"* issued June 18, 2024 Compl. ¶31
- Technology Synopsis: This patent protects a more extensive method of treating SMA with nusinersen, claiming a six-dose loading and initial maintenance regimen administered over approximately 300 days. The invention provides a long-term treatment protocol that extends beyond the initial loading phase described in the '802 Patent '403 Patent, col. 77:50-col. 78:67
- Asserted Claims: At least independent claim 1 is asserted Compl. ¶69
- Accused Features: The complaint alleges that Defendants' proposed generic product, if used as instructed by its anticipated label, will infringe this claimed long-term dosing regimen Compl. ¶¶39, 70-71

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is the submission by the Somerset Defendants of Abbreviated New Drug Application (ANDA) No. 221418 for approval to market "Somerset's Proposed ANDA Product" Compl. ¶1

Functionality and Market Context

- The proposed product is a generic version of Biogen's Spinraza®, with nusinersen as the active ingredient, formulated as an intrathecal injection at a concentration of 12 mg/5 mL Compl. ¶1 Compl. ¶37 The complaint alleges that the ANDA filing seeks approval for the same indication as Spinraza®: the treatment of SMA in pediatric and adult patients (Compl. ¶1; Compl. ¶2). The infringement allegation is based on the act of filing the ANDA itself, and on the allegation that the proposed product label will be "substantially identical" to the Spinraza® label, thereby instructing medical professionals to administer the drug in a manner that infringes the asserted patents Compl. ¶39

IV. Analysis of Infringement Allegations

No probative visual evidence provided in complaint.

'559 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
[a] method of treating a human subject having spinal muscular atrophy (SMA), the method comprising administering to the human subject an antisense oligonucleotide...	The proposed ANDA product is intended to treat SMA by administering an antisense oligonucleotide, nusinersen.	¶1; ¶37	col. 27:49-53
...consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1...	The active ingredient of the proposed product is nusinersen, which is an 18-mer ASO with the nucleobase sequence of SEQ ID NO: 1.	¶37	col. 53:50-54
...wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine...	Nusinersen, the active ingredient, is alleged to have the claimed chemical structure, including the phosphorothioate linkages, 2'-MOE sugars, and 5-methyl cytosine modifications.	¶37; ¶41	col. 25:1-14
...wherein the antisense	The proposed product is	¶1; ¶39; ¶41	col. 28:18-24

oligonucleotide is administered into the cerebrospinal fluid by bolus injection into the intrathecal space...	an "intrathecal injection," and the proposed label is alleged to instruct administration in a manner that constitutes a bolus injection into the intrathecal space.		
...at a dose of 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams of the antisense oligonucleotide.	The proposed product is a 12 mg/5 mL formulation, and the complaint alleges its proposed use will infringe, suggesting the label will instruct administration of a 12.0 mg dose.	¶1; ¶43	col. 8:5-9

'802 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
[a] method for treating a human subject having one or more symptoms associated with spinal muscular atrophy (SMA), the method comprising administering by intrathecal injection doses of an antisense compound...	The proposed product is nusinersen, an ASO for intrathecal injection to treat SMA. Its proposed label is alleged to instruct infringing administration.	¶1; ¶37; ¶39	col. 77:50-65
...wherein the doses	The complaint alleges	¶39; ¶57	col. 49:42-50

comprise: (i) a first dose of 12 mg of the antisense compound;	the proposed label will instruct users to administer the drug in an infringing manner, which would include a first dose of 12 mg.		
(ii) a second dose of 12 mg of the antisense compound 12-18 days after administration of the first dose;	The proposed label is alleged to be substantially identical to the Spinraza® label, which would instruct a second dose at a time interval falling within the claimed range.	¶39; ¶57	col. 49:42-50
and (iii) a third dose of 12 mg of the antisense compound 25-35 days after administration of the first dose.	The proposed label is alleged to be substantially identical to the Spinraza® label, which would instruct a third dose at a time interval falling within the claimed range.	¶39; ¶57	col. 49:42-50

- Identified Points of Contention:
    - Factual Scope: A primary point of contention will be factual: does the method of administration described in the proposed labeling for Somerset's ANDA product literally meet every limitation of the asserted claims? This will involve a direct comparison of the proposed label's instructions against the specific dosing amounts and schedules recited in the claims of the '559, '802, and '403 patents.
    - Technical Equivalence: Should literal infringement not be found, a potential issue is whether the administration method on the proposed label infringes under the doctrine of equivalents. This would raise the question of whether

any differences between the proposed use and the claimed methods are insubstantial.

V. Key Claim Terms for Construction

- The Term: "bolus injection" ('559 Patent, Claim 1)
    - Context and Importance: This term defines the specific manner of intrathecal administration. The infringement analysis will depend on whether the administration procedure described in the defendants' proposed label qualifies as a "bolus injection" as opposed to another method, such as a slow infusion. Practitioners may focus on this term because the distinction between a rapid injection and a slow infusion could be a basis for a non-infringement argument.
    - Intrinsic Evidence for Interpretation:
        - Evidence for a Broader Interpretation: The patent specification does not appear to provide an explicit definition that limits the term's scope, which may support an argument that the term should be given its plain and ordinary meaning as understood by a person of ordinary skill in the art at the time of the invention.
        - Evidence for a Narrower Interpretation: The specification of the related '802 Patent contrasts "bolus injection" with "infusion with a delivery pump" '802 Patent, col. 3:25-26 A party could argue this distinction implies that a "bolus injection" must be a rapid, single push, as opposed to a more controlled, slower administration that might be characterized as an infusion.
- The Term: "treating" ('802 Patent, Claim 1)
    - Context and Importance: As this is a method of treatment claim, the meaning of "treating" is fundamental. In the context of an ANDA case under 35 U.S.C. § 271(e)(2), the act of infringement is submitting the ANDA for a use claimed in a patent. The dispute will center on whether seeking approval to market a drug with a label that *instructs* for the claimed method of "treating" SMA constitutes infringement.
    - Intrinsic Evidence for Interpretation:
        - Evidence for a Broader Interpretation: The '802 Patent specification describes "treatment" as "the application of one or more specific procedures used for the cure or amelioration of a disease," and "amelioration" as "a lessening of severity of at least one indicator of a condition or disease" '802 Patent, col. 20:56-61 This language could

support a broad definition covering any level of symptom improvement.
- Evidence for a Narrower Interpretation: A defendant might argue that "treating" implies achieving a specific, clinically meaningful outcome described in the patent's examples or clinical trial data, such as a particular score on the Hammersmith Functional Motor Scale-Expanded (HFMSE) '802 Patent, col. 51:45-52:2 This could support an argument that merely providing the drug does not equate to successful "treating" unless a certain efficacy threshold is met, though this is a less common construction for this term.

VI. Other Allegations

- Indirect Infringement: The complaint alleges active inducement of infringement for all three asserted patents. The basis for this allegation is that the Somerset Defendants' proposed product label will intentionally encourage and instruct healthcare professionals to administer the generic product in a manner that directly infringes the claims Compl. ¶¶50 Compl. ¶64 Compl. ¶78 The complaint also alleges contributory infringement, stating the product is especially made for the patented methods and is not suitable for substantial noninfringing use Compl. ¶¶51 Compl. ¶65 Compl. ¶79
- Willful Infringement: The complaint does not contain a separate count for willful infringement but lays the factual groundwork for such a claim. It alleges that the Somerset Defendants had pre-suit knowledge of the Asserted Patents because the patents are listed in the FDA's Orange Book for Spinraza® and were explicitly referenced in the notice letter sent to Biogen Compl. ¶¶49 Compl. ¶63 Compl. ¶77

VII. Analyst's Conclusion: Key Questions for the Case

1. A Core Factual Question of Infringement: Will the instructions for use on the defendants' proposed drug label, once finalized, recommend a dosage and administration schedule that falls within the specific ranges and timings recited in Biogen's asserted method claims? The outcome of the infringement analysis will depend heavily on this comparison between the label and the claim language.
2. A Central Legal Question of Validity: Given that this is an ANDA litigation initiated by a Paragraph IV certification, a key issue for the court will be the validity of the asserted claims. The case will likely involve significant disputes over whether the claimed ASO composition and, in particular, the specific dosing regimens were

obvious to a person of ordinary skill in the art at the time of the invention, based on prior art knowledge of ASO therapeutics and clinical trial design.

3. The Question of Injunctive Relief: As this suit was filed under the Hatch-Waxman Act, a critical question is whether Biogen can secure an injunction. This will turn on the court's findings on infringement and validity and will determine whether the FDA can approve Somerset's ANDA before the expiration of the asserted patents.

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

BIOGEN MA INC. and BIOGEN INC.,	)	
	)	
Plaintiffs,	)	
	)	
v.	)	C.A. No._____
	)	
SOMERSET THERAPEUTICS, LLC,	)	
SOMERSET PHARMA, LLC, SOMERSET	)	
THERAPEUTICS PRIVATE LIMITED f/k/a	)	
SOMERSET THERAPEUTICS LIMITED, and	)	
ODIN PHARMACEUTICALS, LLC,	)	
	)	
Defendants.	)	

COMPLAINT

Plaintiffs Biogen MA Inc. and Biogen Inc. (collectively "Biogen"), by their attorneys, hereby allege as follows:

NATURE OF THE ACTION

1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission by defendants Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited, and Odin Pharmaceuticals, LLC (collectively, "Somerset Defendants") of Abbreviated New Drug Application ("ANDA") No. 221418 ("Somerset's ANDA") to the U.S. Food and Drug Administration ("FDA") seeking approval to engage in the commercial manufacture, use, offer for sale, and sale of a generic version of Spinraza® (nusinersen) intrathecal injection, 12 mg/5 mL ("Somerset's Proposed ANDA Product") prior to the expiration of U.S. Patent Nos. 9,926,559 ("the '559 Patent"), 10,436,802 ("the '802 Patent"), and 12,013,403 ("the '403 Patent") (collectively, "the Asserted Patents"). On April 10, 2026, Biogen received a letter from Somerset Therapeutics, LLC dated April 9, 2026 ("Somerset's Notice Letter") notifying Biogen that the Somerset Defendants had submitted their ANDA. Upon information and belief, if approved by the FDA, Somerset's Proposed ANDA Product will be marketed as a competing product to Spinraza®, a product developed and marketed by Biogen for the treatment of spinal muscular atrophy ("SMA").

PARTIES

2. Biogen MA Inc. is a corporation organized and existing under the laws of the Commonwealth of Massachusetts, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142.

3. Biogen Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142.

4. On information and belief, Somerset Therapeutics, LLC ("Somerset Therapeutics") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Therapeutics has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713.

5. On information and belief, Somerset Pharma, LLC ("Somerset Pharma") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Pharma has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Somerset Pharma is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the United States market, including in this judicial district.

6. On information and belief, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited ("Somerset Limited") is a corporation organized and existing under the laws of India, having a corporate headquarters at 54/1, Budihal, Nelamangala, Bengaluru 562 123, Karnataka, India. On information and belief, Somerset Limited plays a role in the production and supply of the Somerset Defendants' generic drug products.

7. On information and belief, Odin Pharmaceuticals, LLC ("Odin") is a limited liability company organized and existing under the laws of the State of Delaware, having its principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Odin has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Odin operates as a research and development facility that supports research and development efforts undertaken by the Somerset Defendants with respect to their generic drug products.

8. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin collaborate with respect to the development, manufacturing, regulatory approval, marketing, sale, importation, and/or distribution of generic drug products for sale in the United States, including in Delaware.

9. On information and belief, Somerset Therapeutics, in collaboration with Somerset Pharma, Somerset Limited, and Odin, caused ANDA No. 221418 to be submitted to FDA and seeks FDA approval of ANDA No. 221418.

10. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin acted collaboratively in preparing and submitting ANDA No. 221418 and continue to act collaboratively in pursuing FDA approval of ANDA No. 221418 and seeking to market Somerset's Proposed ANDA Product in the United States, including in the State of Delaware.

11. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin intend to act collaboratively to commercially manufacture, import, market, distribute, offer for sale, and/or sell Somerset's Proposed ANDA Product, in the event FDA approves ANDA No. 221418.

JURISDICTION AND VENUE

12. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

13. The Court has personal jurisdiction over Somerset Therapeutics because Somerset Therapeutics is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware.

14. The Court has personal jurisdiction over Somerset Pharma because Somerset Pharma is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware.

15. The Court has personal jurisdiction over Odin because Odin is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware.

16. The Court has personal jurisdiction over Somerset Limited because, *inter alia*, on information and belief, Somerset Limited (1) has purposefully availed itself of the privilege of doing business in Delaware, including directly or indirectly through its related entities (e.g., Somerset Therapeutics, Somerset Pharma, and Odin), and (2) maintains pervasive, continuous, and systematic contacts with the State of Delaware through the marketing, distribution, and sale of generic versions of branded pharmaceutical products in the State of Delaware, directly and through its affiliates, and by deriving substantial revenue from the importation and sale of its products in the State of Delaware. In the alternative, this Court has personal jurisdiction over Somerset Limited in the State of Delaware under Federal Rule of Civil Procedure 4(k)(2) because Somerset Limited is not subject to jurisdiction in any state's courts of general jurisdiction and exercising jurisdiction over it is consistent with the United States Constitution and laws.

17. In addition, this Court has personal jurisdiction over the Somerset Defendants because, *inter alia*, the Somerset Defendants have purposefully availed themselves of the benefits and protections of Delaware's laws such that they should reasonably anticipate being haled into court here. Upon information and belief, the Somerset Defendants, themselves

and through their subsidiaries, agents, and/or affiliates, develop, manufacture, import, market, offer to sell, sell, and/or distribute a broad range of generic pharmaceutical products throughout the United States, including in Delaware, and therefore transact business within Delaware relating to Biogen's claims, and/or have engaged in systematic and continuous business contacts within Delaware.

18. Furthermore, this Court has personal jurisdiction over the Somerset Defendants because, *inter alia*, upon information and belief: (1) the Somerset Defendants developed the ANDA product that is the subject of ANDA No. 221418 and submitted ANDA No. 221418 for the purpose of seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in the United States of Somerset's Proposed ANDA Product, including in Delaware; (2) upon approval of Somerset's ANDA, the Somerset Defendants will market, distribute, offer for sale, and sell in the United States, and/or import into the United States, including in Delaware, Somerset's Proposed ANDA Product, and will derive substantial revenue from the use or consumption of Somerset's Proposed ANDA Product in Delaware; and (3) upon approval of Somerset's ANDA, Somerset's Proposed ANDA Product will, among other things, be marketed, distributed, offered for sale, and sold in Delaware, and/or imported into Delaware, prescribed by physicians practicing in Delaware and administered to patients in Delaware, all of which would have substantial effects in Delaware. By submitting Somerset's ANDA, the Somerset Defendants have shown they will use distribution channels to direct sales of Somerset's Proposed ANDA Product into Delaware.

19. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have committed, aided, abetted, induced, contributed to, or participated in the commission of the tortious act of patent infringement that has led and/or will lead to foreseeable harm and injury to Biogen Inc., a Delaware corporation.

20. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have regularly engaged in patent litigation concerning their ANDA products in this District, including by filing counterclaims in such actions, and have consented to jurisdiction in Delaware in prior cases arising out of the filing of ANDAs. See, e.g., *Hope Medical Enterprises, Inc. d/b/a Hope Pharmaceuticals v. Somerset Therapeutics, LLC et al.*, C.A. No. 25-1523-JFM (D. Del.); *Astellas Pharma Inc. et al. v. Renata Limited and Somerset Therapeutics, LLC.*, C.A. No. 25-1383-MN-EGT (D. Del.); *Vifor Fresenius Medical Care Renal Pharma Ltd. et al. v. Gland Pharma Limited et al.*, C.A. No. 25-1382-CFC (D. Del.); *AVEO Pharmaceuticals, Inc. v. Somerset Therapeutics, LLC et al.*, C.A. No. 25-560-MN (D. Del.).

21. Venue is proper in this judicial district under 28 U.S.C. § 1400(b) because Somerset Therapeutics, Somerset Pharma, and Odin are organized under the laws of the State of Delaware and maintain registered agents for service of process in Delaware and therefore reside in Delaware. Venue is proper against Somerset Limited, a foreign corporation, in any judicial district that has personal jurisdiction over it, including in this District, under 28 U.S.C. § 1391(c)(3).

BACKGROUND

SPINRAZA® (NUSINERSEN)

22. Spinraza® is a survival motor neuron-2 (SMN2)-directed antisense oligonucleotide indicated for the treatment of spinal muscular atrophy (SMA) in pediatric and adult patients.

23. Biogen Inc. is the holder of approved New Drug Application ("NDA") No. 209531 for Spinraza®, which has been approved by the FDA.

24. The Asserted Patents are listed for NDA No. 209531 for Spinraza® in the FDA's *Approved Drug Products with Therapeutic Equivalence Evaluations*, commonly known as the "Orange Book."

25. The '559 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally issued on March 27, 2018. A copy of the '559 Patent is attached as Exhibit A.

26. Biogen MA Inc. is the assignee of the '559 Patent.

27. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '559 Patent.

28. The '802 Patent, titled "Methods for treating Spinal Muscular Atrophy," was duly and legally issued on October 8, 2019. A copy of the '802 Patent is attached as Exhibit B.

29. Biogen MA Inc. is the assignee of the '802 Patent.

30. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '802 Patent.

31. The '403 Patent, titled "Compositions and methods for detection of SMN protein in a subject and treatment of a subject," was duly and legally issued on June 18, 2024. A copy of the '403 Patent is attached as Exhibit C.

32. Biogen MA Inc. is the assignee of the '403 Patent.

33. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '403 Patent.

34. This action is being filed within 45 days of Biogen's receipt of Somerset's Notice Letter.

SOMERSET'S ANDA

35. According to Somerset's Notice Letter, ANDA No. 221418 includes a certification pursuant to the Food, Drug, & Cosmetic Act ("FDCA"), 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification"), that the Asserted Patents are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, sale, or offer for sale of Somerset's Proposed ANDA Product.

36. The Somerset Defendants were aware of the Asserted Patents at least as of when ANDA No. 221418 was filed with a Paragraph IV Certification.

37. Upon information and belief, nusinersen is the active ingredient in Somerset's Proposed ANDA Product.

38. Upon information and belief, ANDA No. 221418 refers to and relies upon NDA No. 209531 for Spinraza® and contains data that, according to the Somerset Defendants, demonstrate

bioequivalence of Somerset's Proposed ANDA Product and Spinraza®, *see* 21 U.S.C. § 355(j)(2); 21 C.F.R. § 314.94(a)(7), or the Somerset Defendants have sought a waiver of the requirement to demonstrate bioequivalence of Somerset's Proposed ANDA Product and Spinraza®.

39. Upon information and belief, the label for Somerset's Proposed ANDA Product ("Somerset's Proposed Label") will be substantially identical to the Spinraza® label. Upon information and belief, the Somerset Defendants intend to have healthcare professionals administer Somerset's Proposed ANDA Product, if approved, as set forth in Somerset's Proposed Label for this ANDA product. Upon information and belief, Somerset's Proposed Label will instruct healthcare professionals to prescribe and administer Somerset's Proposed ANDA Product in the manner set forth in Somerset's Proposed Label.

COUNT I

(Infringement of the '559 Patent)

40. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

41. Claim 1 of the '559 Patent covers "[a] method of treating a human subject having spinal muscular atrophy (SMA), the method comprising administering to the human subject an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine, wherein the antisense oligonucleotide is administered into the cerebrospinal fluid by bolus injection into the intrathecal space at a dose of 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams of the antisense oligonucleotide."

42. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '559 Patent, including at least claim 1.

43. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '559 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

44. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '559 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

45. Somerset Therapeutics did not contend in Somerset's Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '559 Patent.

46. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale,

and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '559 Patent.

47. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '559 Patent was an act of infringement of the '559 Patent under 35 U.S.C. § 271(e)(2)(A).

48. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, *i.e.*, prior to the expiration of the '559 Patent, in violation of 35 U.S.C. § 271(a).

49. Upon information and belief, the Somerset Defendants have had knowledge of the '559 Patent at least because the '559 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Notice Letter references the '559 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

50. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '559 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '559 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

51. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '559 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '559 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

52. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '559 Patent, active inducement of infringement of the '559 Patent, and contribution to the infringement by others of the '559 Patent, either literally or under the doctrine of equivalents.

53. Unless the Somerset Defendants are enjoined from infringing the '559 Patent, actively inducing infringement of the '559 Patent and contributing to the infringement by others of the '559 Patent, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

COUNT II

(Infringement of the '802 Patent)

54. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

55. Claim 1 of the ’802 Patent covers “[a] method for treating a human subject having one or more symptoms associated with spinal muscular atrophy (SMA), the method comprising administering by intrathecal injection doses of an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2’-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine, wherein the doses comprise: (i) a first dose of 12 mg of the antisense compound; (ii) a second dose of 12 mg of the antisense compound 12-18 days after administration of the first dose; and (iii) a third dose of 12 mg of the antisense compound 25-35 days after administration of the first dose.”

56. Upon information and belief, Somerset’s Proposed ANDA Product and its use are covered by one or more of the claims of the ’802 Patent, including at least claim 1.

57. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset’s Proposed ANDA Product, and/or the use of Somerset’s Proposed ANDA Product in accordance with and as directed by Somerset’s Proposed Label for that product, will infringe one or more claims of the ’802 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

58. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the ’802 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset’s Proposed ANDA Product.

59. Somerset Therapeutics did not contend in Somerset’s Notice Letter that Somerset’s Proposed ANDA Product, or the use of Somerset’s Proposed ANDA Product in accordance with and as directed by Somerset’s Proposed Label for that product, would not infringe the ’802 Patent.

60. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset’s Proposed ANDA Product prior to the expiration of the ’802 Patent.

61. The Somerset Defendants’ submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset’s Proposed ANDA Product prior to the expiration of the ’802 Patent was an act of infringement of the ’802 Patent under 35 U.S.C. § 271(e)(2)(A).

62. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset’s Proposed ANDA Product and Somerset’s Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, *i.e.*, prior to the expiration of the ’802 Patent, in violation of 35 U.S.C. § 271(a).

63. Upon information and belief, the Somerset Defendants have had knowledge of the ’802 Patent at least because the ’802 Patent is listed in the FDA’s Orange Book for Biogen’s

Spinraza® drug product, and because Somerset's Notice Letter references the '802 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

64. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '802 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '802 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

65. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '802 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '802 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

66. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '802 Patent, active inducement of infringement of the '802 Patent, and contribution to the infringement by others of the '802 Patent, either literally or under the doctrine of equivalents.

67. Unless the Somerset Defendants are enjoined from infringing the '802 Patent, actively inducing infringement of the '802 Patent and contributing to the infringement by others of the '802 Patent, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

COUNT III

(Infringement of the '403 Patent)

68. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

69. Claim 1 of the '403 Patent covers "[a] method of treating spinal muscular atrophy (SMA) in a human subject in need thereof, the method comprising administering to the human subject by intrathecal bolus injection doses of a pharmaceutical composition comprising a pharmaceutically acceptable carrier and an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the antisense oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the antisense oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the antisense oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the antisense oligonucleotide is a 5-methyl cytosine, wherein the doses comprise: (i) a first dose of 12 mg of the antisense oligonucleotide; (ii) a second dose of 12 mg of the antisense oligonucleotide administered approximately 12-18 days after administration of the first dose; (iii) a third dose of 12 mg of the antisense oligonucleotide administered approximately 25-35 days after administration of the first dose, wherein the third dose is administered at least 14 days after the second dose; (iv) a fourth dose of 12

mg of the antisense oligonucleotide administered approximately 60-70 days after administration of the first dose; (v) a fifth dose of 12 mg of the antisense oligonucleotide administered approximately 178-188 days after administration of the first dose; and (vi) a sixth dose of 12 mg of the antisense oligonucleotide administered approximately 298-308 days after administration of the first dose."

70. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '403 Patent, including at least claim 1.

71. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '403 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

72. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '403 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

73. Somerset Therapeutics did not contend in Somerset's Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '403 Patent.

74. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '403 Patent.

75. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '403 Patent was an act of infringement of the '403 Patent under 35 U.S.C. § 271(e)(2)(A).

76. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, *i.e.*, prior to the expiration of the '403 Patent, in violation of 35 U.S.C. § 271(a).

77. Upon information and belief, the Somerset Defendants have had knowledge of the '403 Patent at least because the '403 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Notice Letter references the '403 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

78. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the ’403 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the ’403 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

79. Upon information and belief, the Somerset Defendants know that Somerset’s Proposed ANDA Product is especially made or adapted for use in patented methods of the ’403 Patent, and that Somerset’s Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the ’403 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

80. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the ’403 Patent, active inducement of infringement of the ’403 Patent, and contribution to the infringement by others of the ’403 Patent, either literally or under the doctrine of equivalents.

81. Unless the Somerset Defendants are enjoined from infringing the ’403 Patent, actively inducing infringement of the ’403 Patent and contributing to the infringement by others of the ’403 Patent, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

REQUEST FOR RELIEF

WHEREFORE, Biogen requests the following relief:

(a) A judgment that the Somerset Defendants have infringed the Asserted Patents under 35 U.S.C. § 271(e)(2)(A);

(b) A judgment pursuant to 35 U.S.C. § 271(e)(4)(A) ordering that the effective date of any FDA approval for the Somerset Defendants to make, use, offer for sale, sell, market, distribute, or import Somerset’s Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, be not earlier than the latest expiration date among the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A permanent injunction pursuant to 35 U.S.C. § 271(e)(4)(B) enjoining the Somerset Defendants, and all persons and entities acting in concert with the Somerset Defendants, from making, using, selling, offering for sale, marketing, distributing, or importing Somerset’s Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or the inducement of or contribution to any of the foregoing, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing of Somerset’s Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, prior to the expiration date of the latest-expiring of the Asserted Patents, infringes, will infringe, will actively induce infringement of, and/or will contribute to the infringement by others of the Asserted Patents under 35 U.S.C. §§ 271(a), (b) and (c);

(e) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if the Somerset Defendants engage in making, using, selling, offering for sale, marketing, distributing, or importing of Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or induces or contributes to such conduct, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(f) A finding that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(g) An award of Biogen's costs and expenses in this action; and

(h) Such further and other relief as this Court may deem just and proper.